

23STCP02716 23STCP02716

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-13

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Case Number: 23STCP02716 Hearing Date: July 13, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCP02716

ROWLAND

HEIGHTS MEDICAL PLAZA LLC vs SAMUEL CHUNG, et al.

July

13, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF ARDENT LAW GROUP, PC TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The Court grants the
Motion.

The Court will complete,
sign and file the Form Order received-stamped on June 5, 2026.

ANALYSIS:

On September 25, 2025,
the Court filed the Judgment Confirming Arbitration Award.

On May 22, 2026, the
appeal filed December 30, 2025, was dismissed.

By the Motion, filed June
5, 2026, counsel moves to be relieved as attorney of record for Respondent
SAMUEL CHUNG, by declaring, in the form Declaration, at paragraph 2: "[C]lient
Samuel Chung has ceased to paid his attorney's fees and communications with the
Attorney. As a result, continuing to represent the client would cause undue
hardship on attorney."

Here, the form notice,
declaration, proposed order, and proof of service sufficiently comply with the
requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's
declaration shows cognizable grounds for withdrawal:

The client by conduct renders it
unreasonably difficult for the member to carry out the employment
effectively (e.g., noncooperation or noncommunication). (Rules Prof.
Conduct, rule 1.16(b)(4). Cf.
Estate of Falco v. Decker (1987) 188 Cal.App.3d 1004, 1020 ["We find no abuse of discretion
in the trial court's implicit finding rejecting the contention that
respondents' lack of cooperation justified appellants' withdrawal."].)

The client breaches an agreement or
obligation to the member as to expenses or fees. (Rules Prof. Conduct,
rule 1.16; Lempert v. Sup. Ct. (2003) 112 Cal.App.4th 1161, 1173.)

Finally, no opposing
document is filed in order to show any prejudice caused by attorney withdrawal.
(See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54
Cal.App.3d 192, 197.)

Therefore, the Court
grants the Motion and will sign the proposed Order counsel submitted.